

IN THE STATE COURT OF GLYNN COUNTY

STATE OF GEORGIA

STATE OF GEORGIA	:	CASE NO.: 24CR13237
	:	
v.	:	
	:	
AUSTIN TYLER UNDERWOOD	:	
DEFENDANT.		

ORDER FOR PSYCHOLOGICAL EVALUATION

WHEREAS, the Defendant having moved this Honorable Court for stabilization and mental evaluation to be performed on the above-named Defendant, and the mental competency of the above-named Defendant having been called into question, and evidence presented in the matter, and this court having found it appropriate for an evaluation to be conducted at public expense;

IT IS HEREBY ORDERED that the Department of Human Resources (or Forensic Psychiatry Science) conduct an examination of the Defendant to provide treatment to the Defendant, if appropriate, and to provide to the **Chief Judge of this Court, Chief Judge BART ALTMAN, and the Defendant's attorney, Kathleen Willcox Williams**, under separate cover, a report of diagnosis, prognosis and its findings as to the above named individual regarding the questions of:

a) **Defendant's competency to stand trial:** whether the Defendant is capable of understanding the nature and object of the proceedings; whether the Defendant comprehends his own condition in reference to the proceedings against him; and, whether the Defendant is capable of rendering to counsel assistance in providing a proper defense.

b) **Defendant's degree of criminal responsibility for his actions at the time of the alleged offense and mental competency at the time of the alleged offense:** whether or not the Defendant had the mental capacity to distinguish right from wrong in relation to the alleged acts underlying the offenses charged; whether or not the presence of a delusional compulsion overmastered his will to resist committing the alleged acts underlying the offenses charged.

c) **Any recommendations for disposition and treatment.**

IT IS FURTHER ORDERED that the Department or service arrange with the County Sheriff or his lawful deputies for the prompt examination of the said Defendant at the Glynn County Jail in Brunswick, Georgia, or any legally suitable facility, there to be given whatever psychiatric and physical examination, evaluation, and treatment deemed to be necessary and proper by the authorities of the said hospital.

The Clerk of Court is hereby ordered to serve a copy of the foregoing Motion and Order upon the Director of Forensic Services Program, Georgia Regional Hospital at Savannah, Georgia.

The Prosecutor is hereby ordered to provide as soon as practicable to defense counsel a copy of the charging instrument and incident report so that said evaluation may proceed.

SO ORDERED, this _____ day of _____, 2025.

Judge, State Court
Brunswick Judicial Circuit

Order Prepared by:



Kathleen Willcox Williams
Attorney for Defendant

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